

Legal Template Use Guide — Recruiting Agency

IMPORTANT NOTICE

The legal documents in this operating system are generic educational templates only. They are not legal advice. Always have a qualified attorney review any contract before commercial use.

DOCUMENTS INCLUDED

- Recruiting_Service_Agreement.docx — Core client contract covering fees, guarantees, confidentiality
- Anti_Discrimination_Policy.docx — Internal policy for EEOC compliance
- EEOC_Compliance_Checklist.docx — Ongoing compliance reference
- Record_Retention_Policy.docx — Data retention schedule and requirements

CUSTOMIZATION STEPS

1. Open each document in Microsoft Word or Google Docs
2. Replace all [bracketed placeholders] with your specific information
3. Review all percentage figures, timelines, and terms
4. Have a licensed attorney in your jurisdiction review before use
5. Keep signed copies of all agreements in a secure location

KEY LEGAL AREAS FOR RECRUITING AGENCIES

- Fee agreements: Contingency vs. retained; payment timing; guarantee terms
- EEOC/Anti-discrimination: Prohibited questions; disparate impact; record keeping
- Privacy: FCRA for background checks; GDPR/CCPA for candidate data
- Confidentiality: Candidate data protection; client confidential information
- Intellectual property: Ownership of candidate databases and sourced leads

WHEN TO CONSULT AN ATTORNEY

- Before your first client signs a contract
- When entering a new state with different employment laws
- When a dispute arises with a client or candidate
- When handling background checks or sensitive candidate data
- When adding employees or independent contractors to your team